

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR JULY 7, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE JUDGE

**Unless the Court directs otherwise, appearances by counsel and parties in
Department 38 may be made as follows:**

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars | Superior Court of California | County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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1A. 9:00 AM	MSP18-01726 ESTATE OF: RICHARD COHN SR HEARING IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED ON 03/09/2026 BY GEORGE COHN Need appearances
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1B. MSP18-01726 ESTATE OF: RICHARD COHN SR

9:00 AM HEARING IN RE: PETITION TO SET ASIDE FINAL ORDER OF DISTRIBUTION FILED ON 10-15-25 BY
GEORGE COHN

Need:

1. Appearances
2. Petition verified. PrC § 1021. CCP § 2015.5. CRC 7.103
3. Verified declaration by petitioner to state names, current addresses and relationships of all persons entitled to receive notice. LR 7.112
4. Proof of mailing to all persons entitled to receive notice
5. Proposed Order

Notes:

1. Spousal Property Order filed 5-16-2025.
2. Disability Accommodation Request received 10-21-2025.
3. Order Vacating Order for Probate Retroactively Due to Insolvency and Exonerating Bond Retroactively Nunc Pro Tunc filed 11-19-2025.

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3. **MSP20-00428** **MATTER OF: THE CHRISTINE M BERGMAN SPECIAL NEEDS TR**
9:00 AM HEARING IN RE: PETITION TO APPROVE FIRST ACCOUNT AND REPORT FILED ON 03/09/2026 BY
HEATHER FISHER

Need:

Bond presented for filing before Order will be signed.

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4A.

9:00 AM

MSP21-01476 ESTATE OF: JANN D. JANSEN JAMES

HEARING IN RE: AMENDED PETITION FOR PROBATE FILED ON 12/2/21 BY WARNER JENSON (AS REVIVED BY ORDER FILED 4/05/24)

Need appearances to report status, including 3-5-2026 order to meet and confer

Note: Order Re: Motion to Vacate Orders filed 4-5-2024. Order vacated appointment of Warner Jensen and revoked letters issued.

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4B.

9:00 AM

MSP21-01476 ESTATE OF: JANN D. JANSEN JAMES

HEARING IN RE: PETITION FOR PROBATE OF LOST WILL AND FOR LETTERS OF ADMINISTRATION WITH WILL ANNEXED W/ IAEA FILED 6/12/2024 BY DONICE SMITH

Need:

1. Appearances to report status, including 3-5-2026 order to meet and confer
2. Proof of mailing Notice of Petition to Administer Estate and copy of petition to all heirs and beneficiaries. PrC § 8110; LR 7.151(e)
3. Verified declaration by petitioner to complete petition item # 3.h. (whether petitioner is a resident of California and United States)
4. Verified declaration by petitioner to complete petition item #3f. (date of will)
5. Verified declaration by petitioner to include Attachment 3.f.(2) (copy of will), not attached as indicated. PrC § 8002
6. Lodge Original Will (w/legal process). PrC § 8200
7. Evidence to overcome presumption of revocation by the fact that the originals cannot be located. PrC § 6124
8. Proof of mailing notice that will is lost. PrC § 1202
9. Proof of Subscribing Witness Form DE-131. PrC § 8220.
10. Proposed Order for Probate Form DE-140 with copy of Will attached, if lost will is to be admitted

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4C.

9:00 AM

MSP21-01476 ESTATE OF: JANN D. JANSEN JAMES

HEARING IN RE: FOR FINAL DISTRIBUTION, ADMINISTRATOR'S REPORT, REQUEST FOR ATTORNEY'S FEES, ADMINISTRATOR'S FEES BASED ON WAIVER OF ACCOUNTING FILED ON 06/26/23 BY WARNER JANSEN

Need:

1. Appearances to report status, including 3-5-2026 order to meet and confer
2. Verified declaration by petitioner to clarify whether Ernie Mingiana listed at ¶ 18 is the same person as Ernesto Mingiana listed at ¶15.
3. Proof of mailing Inventory and Appraisal to atty. Jeffrey T. Vanderveen, Esq. PrC § 8803
4. Verified declaration by petitioner to include date Creditor's Claim was filed by Doris Slater. PrC § 10900; CRC § 7.403
5. Verified declaration by petitioner to include date and amount of Creditor's Claim filed by Donice Smith
6. Verified declaration by petitioner to state whether notice was given, or needed, to the Director of the California Victim Compensation Board, i.e., does petitioner have any reason to believe any heir is confined, or has previously been confined, in any prison or other correctional facility. PrC §§ 216, 9202(b)
7. Compliance with CRC 7.250 regarding any acts taken under IAEA w/notice of proposed action. (Specifics needed or statement that no action was taken)
8. Authority for preliminary distribution of \$136,912.57 to Nathan James as indicated at ¶ 19
9. Verified declaration by petitioner to show calculation of statutory fee base as required by CRC § 7.705. Specifically, must clarify deduction of preliminary distribution at ¶ 20.
10. Verified declaration by petitioner to specify whether all charges for legal advertising, bond premiums, probate referee's services and costs of administration have been paid. LR 7.317
11. Declaration to state need for reserve in excess of \$2,000.00.
12. Proposed Order

Notes:

- a. Objection filed by Donice Smith 11/08/23.
- b. Per Order filed 04/05/2024, this petition is treated as a status report.

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| 7.
9:00 AM | MSP21-01498 IN RE: THE DAVID WREN JR. REVOCABLE TRUST
HEARING IN RE: PETITION FOR ORDER COMPELLING RESP GWENDOLYN BROWN WREN INDIVIDUALLY & AS TRUSTEE OF THE BROWN FAMILY TRUST TO RETURN DECEDENT'S ESTATE & OR TRUST; DOUBLE DAMAGES; ATTY FEES & COSTS; IMPOSING CONSTRUCTIVE TRUST FILED BY MARNA MARSH ON 3-6-26

Need:
<ol style="list-style-type: none">1. Appearances2. Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on each person having title to or possession of, the property. PrC § 851(a)(2)
Notes:
<ol style="list-style-type: none">1. Letters Testamentary issued to Marna Marsh 4-23-2026.2. Related matters are set for hearing 8-11-2026, 9-22-2026 and 10-1-2026.3. 1st Amendment filed 5-27-2026, is set for hearing 9-29-2026. |
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| 8.
9:00 AM | P23-00787 ESTATE OF: HOUSTON BROWN
HEARING IN RE: FIRST AND FINAL REPORT OF EXECUTOR AND PETITION FOR ALLOWANCE OF STATUTORY COMPENSATION TO EXECUTOR AND ATTORNEYS AND FOR FINAL DISTRIBUTION FILED BY ROMELLO BERNSTINE ON 10/8/2025

Need:
<ol style="list-style-type: none">1. Verified declaration by petitioner to include trust beneficiaries as persons entitled to receive notice. LR 7.1122. Compliance with CRC 7.250 regarding any acts taken under IAEA w/notice of proposed action. (Specifics needed including date action was taken and date notice was given)3. Identification of and waivers of accounting from presumptive contingent remainder beneficiaries of the trust. The Trustee has a fiduciary duty to protect their interests, and cannot use his/her fiduciary position to relieve her/himself of the obligation to provide an accounting in this proceeding. Trustee and personal representative are the same person.4. Revised, proposed Order if needed in resolution of above |
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9. **P24-00947** **ESTATE OF: EVELYN SETTON**
9:00 AM HEARING IN RE: PETITION FOR FINAL DISTRIBUTION AND FIRST AND FINAL ACCOUNT AND REPORT
OF ADMINISTRATOR FILED BY EDGAR SETTON ON 10/14/2025

Petitioner, brother, still must do the following:

1. Appear at the hearing
2. File a verified declaration to clarify plan of distribution. Father Joseph Setton post-deceased. Mother Yvette Setton is only entitled to 50% interest in this estate, albeit mother has assigned her interest to Edgar Setton and David Setton.
3. Submit a revised, proposed Order as needed

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10A.

9:00 AM

P24-01202

ESTATE OF: MARTHA MARTIN

HEARING IN RE: PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY WITH IAEA
~~FILED BY DAMIAN DE LA ROSA ON 7/17/24/ POST MEDIATION. / POST MEDIATION~~
MOTION TO STRIKE UNTIMELY OBJECTION AND CROSS PETITION FILED ON 01/13/25 BY DAMIAN DE
LA ROSA

Need appearances

Note: Objection filed by Michael G. Martin 03/12/25

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10B.

9:00 AM

P24-01202

ESTATE OF: MARTHA MARTIN

PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY WITH IAEA FILED BY DAMIAN DE LA ROSA ON 7/17/24 / AFTER MEDIATION

Need appearances to report status

Notes:

- a. Will Contest and Grounds of Objection filed by Rodrigo De La Rosa 11/15/2024.
- b. Objection filed by Michael G. Martin 12/19/2024.
- c. Response to Will Contest filed by Damian De La Rosa 01/03/2025.
- d. Response to Objection of Michael Martin filed by Damian De La Rosa 01/03/2025.
- e. Per 2-10-2026 minute order, court ordered objections to be filed by 3-26-2026.

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10C. 9:00 AM	P24-01202 ESTATE OF: MARTHA MARTIN PETITION FOR PROBATE OF LETTERS OF ADMINISTRATION W/IAEA FILED ON 11/15/2024 BY RODRIGO DE LA ROSA Need appearances to report status
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13.

9:00 AM

P25-01551

ESTATE OF: STANLEY BOERSMA

SPOUSAL PROPERTY PETITION FILED ON 9/3/2025 BY GEURTJE BOERSMA

Need:

1. Verified declaration from petitioner to confirm the correct address for Edward Boersma. The address on the Notice of Hearing mailing list does not match the address stated in the Petition.
2. Verified declaration by petitioner to include Attachment 7, facts upon which the petitioner bases the allegation of community property, including date and length of marriage, whether spouses were legally separated or living apart, when real property was purchased and by whom, and whether community property funds were used to purchase real property
3. Verified declaration with revised attachment 7a, to include percentage of ownership in the property to be determined as having passed to the surviving spouse.
4. Authority for court to pass decedent's ½ interest in community property to him individually. Will authorizes distribution to trustee of trust.
5. Proposed Order

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14.	P26-00439	MATTER OF: 2012 CHRISTOPHER S KIM IRREVOCABLE TRUST, DATED 11-29-12, FOR THE BENEFIT OF CHRISTOPHER S KIM AND HIS DESCEDANTS
9:00 AM	PETITION FOR ORDER APPROVING MODIFICATION OF TRUST TERMS FILED BY CHRISTOPHER KIM ON 3-9-26	
	Need: Proposed Order	

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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15.	P26-00442	MATTER OF: PHILLIP DEAN STRAND REVOCABLE TRUST DATED DECEMBER 19, 2025
9:00 AM	PETITION FOR ORDER CONFIRMING TRUST ASSETS (PROB CODE 850) FILED BY HEATHER STRAND ON 3-10-26	
	Need:	
	1. Appearances 2. Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on Tammy Lemke Strand. PrC § 851(a)(2) 3. 30 days proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to James Strand. PrC § 17203 4. Proposed Order	

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16. P26-00961 ESTATE OF: VIDEAU, SHELLY

9:05 AM HEARING IN RE: PETITION TO DETERMINE SUCCESSION TO PRIMARY RESIDENCE FILED ON 05/22/26
BY JENNA SMITH

Need:

1. Verified declaration by petitioner to include Attachment 14, not attached as indicated
2. Verified declaration by petitioner to add deceased spouse with date of death to petition Item # 8. LR 7.151(d)
3. Maximum Values for Small Estate Set-Aside Judicial Council Form DE-300
4. Verified declaration by petitioner to include facts showing that the property was decedent's primary residence in California. Attachment 11 is incomplete.